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April 15, 2025

ENGROSSED HOUSE
BILL NO. 2752

By: Caldwell (Trey), Hilbert,
and Dobrinski of the House

and

Gollihare and Bullard of
the Senate

An Act relating to eminent domain; amending 27 O.S. 2021, Section 7, which relates to eminent domain for electricity; determining when eminent domain may be used; providing that eminent domain shall not be used for certain facilities on private property; requiring certain entities seeking eminent domain to receive specific certificates under certain circumstances; providing the Corporation Commission grant such certificates; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27 O.S. 2021, Section 7, is amended to read as follows:

Section 7. A. Except as otherwise provided in this section, any person, firm or corporation organized under the laws of this state, or authorized to do business in this state, to furnish light, heat or power by electricity or natural gas, or any other person, association or firm engaged in furnishing lights, heat or power by electricity or natural gas shall have and exercise the right of

1 eminent domain in the same manner and by like proceedings as
2 provided for railroad corporations by laws of this state.

3 B. The power of eminent domain shall not be used for the siting
4 or building of wind ~~turbines~~ energy facilities, solar energy
5 facilities, battery storage facilities, hydrogen gas facilities, or
6 other renewable energy facilities on private property.

7 C. Prior to seeking to exercise eminent domain for an electric
8 transmission facility rated greater than three hundred (300)
9 kilovolts, any person, firm, or corporation under the purview of
10 subsection A of this section must have obtained a Certificate of
11 Authority from the Corporation Commission, as required in Enrolled
12 House Bill No. 2756 of the 1st Session of the 60th Oklahoma
13 Legislature.

14 SECTION 2. This act shall become effective November 1, 2025.

15 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
16 April 15, 2025 - DO PASS
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